

-

File No.: EXP202212191

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 25, 2022, a complaint was filed with registration number REGAGE22e00047904801 before the Spanish Agency for Data Protection against AIRE NETWORKS DEL MEDITERRANEO, S.L.U. with NIF B53704599 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant files a complaint for receiving commercial calls on their mobile line ***PHONE.1, registered in the Robinson List.

Along with the notification, the following is provided:

- Certificate proving the registration of the receiving line in the Robinson List since 02/18/2022.
- Screenshot justifying the receipt of a call on October 25, 2022, at 16:55 hours, from the calling line ***PHONE.2.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party AIRE NETWORKS DEL MEDITERRANEO, S.L.U., for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on November 21, 2022, as noted in the acknowledgment of receipt in the file.

On November 22, 2022, a response was received in this Agency indicating that AIRE NETWORKS DEL MEDITERRANEO, S.L.U. does not make use of that line, but that as of October 25, 2022, it belonged to the following holder: LEADDESK S.L.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the holder of that line LEADDESK, S.L., for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not acknowledged by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on January 17, 2023, as noted in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on January 17, 2023. In that notification, they were reminded of their obligation to interact electronically with the Administration, and were informed of the means to access such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

No response has been received to this forwarding letter.

FOURTH: On January 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FIFTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATION ACTIONS

A postal request was sent to the complained party on 30/03/2023, which was delivered on 12/04/2023. It was reiterated by postal mail on 11/05/2023 and was delivered on 25/05/2023.

An email was sent on 27/04/2023, which was delivered to ***EMAIL.1 and to the address ***EMAIL.2 provided by the complained party in another file. The email was reiterated on 19/05/2023, which was delivered to these two addresses and to ***EMAIL.3.

No response has been received as of the date of drafting this report.

Through a diligence, it has been verified that it is the same address that appears on the website

***URL.1: LeadDesk SL, ***ADDRESS.1, and in the privacy policy in English ***URL.2, which indicates the contact of the Data Protection Officer or DPO:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

Privacy Compliance Officer, c/o LeadDesk Ltd, Address: Hämeentie 19, Helsinki, ES, 00500, Finland, Email: ***EMAIL.2.

And at ***URL.1 the contact in Spain is indicated: A.A.A., Country Manager, Spain, ***TELÉFONO.1 ***EMAIL.3.

In another file, the postal address was verified with the AEAT, which turns out to be ***DIRECCIÓN.1. In the context of file EXP202204902, the respondent states that LEADDESK offers a cloud-based contact center solution (VoIP) for nearly 2000 businesses and organizations in Europe and is registered as a telecommunications service provider in the countries where it operates. It provides the contact address ***EMAIL.2.

It has been verified that the respondent is listed in the Register of Electronic Communications Operators of the CNMC since 17/09/2021 for two activities: RESALE OF MOBILE VOICE SERVICE and RESALE OF FIXED TELEPHONE SERVICE - INDIRECT ACCESS, with its registered office at Calle ***DIRECCIÓN.2.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final provision sixth, section 2 of LGTel 11/2022

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/5

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the actions carried out by this Agency, it has been determined that the calling line does not belong to AIRE NETWORKS DEL MEDITERRANEO, S.L.U. but rather, as of October 25, 2022, belonged to LEADDESK S.L. LEADDESK, S.L. has not responded to the information requests made by this Agency, therefore, in this case, it has not been possible to determine that LEADDESK is the final responsible party for the complained call. Thus, the principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Therefore, as it has not been possible to attribute responsibility for making the call and in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to LEADDESK, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es